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CHAPTER [10]

DIGITAL TRADE

Section A

General provisions

Article 10.1

Objective and Scope

1. The Parties recognise the economic growth and opportunities provided by digital trade and the importance of promoting consumer confidence in electronic commerce and facilitating its use and development.
2. This Chapter applies to measures of a Party affecting trade enabled by electronic means.
3. This Chapter shall not apply to data held or processed by or on behalf of a Party, or measures related to such data¹, including measures related to its collection, storage or processing.
4. Nothing in Articles X.5 Cross-Border Data Flows, Article 10.8 No Prior Authorisation, and Article 10.13 Transfer of or Access to Source Code prevents a Party from adopting or maintaining a measure in accordance with the conditions inscribed in its schedule of Specific Commitments.
5. The provisions in this Chapter shall not apply to audio-visual services.

Article 10.2

Right to regulate

The Parties reaffirm the right to regulate within their territories to achieve legitimate policy objectives, such as the protection of public health, safety, the environment including climate change, public morals, social or consumer protection, or the promotion and protection of cultural diversity.

¹ For greater certainty, such measures include those relating to computing facilities or network elements used for the collection, storage or processing of such data.

Article 10.3

Exceptions

Nothing in this Chapter prevents the Parties from adopting or maintaining measures in accordance with Article 23.1 (General exceptions) and Article 23.2 (Security exception)] of Chapter 23 (Exception) and Article 8.49 (Prudential carve out)] of Chapter 8 (Investment Liberalisation and Trade in Services) for the public interest reasons set out therein.

Article 10.4

Definitions

For the purpose of this Chapter:

- (a) “consumer” means any natural person using or requesting a publicly available electronic communications service for purposes outside his trade, business, craft or profession;
- (b) “direct marketing communication” means any form of advertising by which a natural or legal person communicates marketing messages directly to end-users via a public electronic communications network and, for the purpose of this Agreement, covers at least electronic mail and text and multimedia messages (SMS and MMS);
- (c) “electronic authentication service” means a service that enables to confirm:
 - (i) the electronic identification of a natural or legal person; or
 - (ii) the origin and integrity of data in electronic form;
- (d) “electronic seal” means data in electronic form used by a legal person which is attached to or logically associated with other data in electronic form to ensure the latter’s origin and integrity;
- (e) “electronic signature” means data in electronic form which is attached to or logically associated with other electronic data and fulfils the following requirements:
 - (i) it is used by a natural person to agree on the electronic data to which it relates; and
 - (ii) it is linked to the electronic data to which it relates in such a way that any subsequent alteration in the data is detectable;
- (f) “electronic trust services”² means an electronic service consisting of the creation, verification, and validation of electronic signatures, electronic seals, electronic time

² Electronic trust services may also refer to certified electronic services in accordance to relevant domestic laws and regulations of the Parties.

stamps, electronic registered delivery, website authentication and electronic certificates related to those services; and

- (g) “end-user” means any natural or legal person using or requesting a publicly available electronic communications service, either as a consumer or for trade, business or professional purposes;

(h) covered person means:

- (i) a covered enterprise as defined in Article 8.4 (Definitions) of Section A (General Provisions) of Chapter 8 (Liberalisation of Investment and Trade in Services);
 - (ii) an investor of a Party as defined in Article 8.4 (Definitions) of Section A (General Provisions) of Chapter 8 (Investment Liberalisation and Trade in Services); or
 - (iii) a service supplier of a Party as defined in Article 8.4 (Definitions) of Section A (General Provisions) of Chapter 8 (Investment Liberalisation and Trade in Services);
- (j) "personal data" means any information relating to an identified or identifiable natural person.

Section B

Data flows and personal data protection

Article 10.5

Cross-border data flows

1. The Parties are committed to ensuring cross-border data flows to facilitate trade and recognise that each Party may have its own regulatory requirements in this regard.
2. To that end, cross-border data flows for the conduct of the business of covered persons shall not be restricted between the Parties by a Party³:

³ For greater certainty, the competent authority of a Party may require access to data for law enforcement or regulatory oversight in accordance with Article 10.5(2) and where relevant, subject to Article 23.1 (General exceptions), Article 23.2 (Security exceptions) and Article ZZ (Prudential carve-out).

- a) requiring the use of computing facilities or network elements in its Party's territory for processing including by imposing the use of computing facilities or network elements that are certified or approved in its territory⁴ ;
 - b) requiring the localisation of data in its territory for storage or processing;
 - c) prohibiting storage or processing in the territory of the other Party; or
 - d) making the cross-border transfer of data contingent upon use of computing facilities or network elements in its territory or upon localisation requirements in its territory.
3. The Parties shall keep the implementation of this provision under review and assess its functioning within three years of the entry into force of this Agreement, unless the Parties agree otherwise. A Party may at any time propose to the other Party to review the list of restrictions listed in paragraph 2. Such request shall be accorded sympathetic consideration.

Article 10.6

Protection of personal data and privacy

1. Each Party recognises that the protection of personal data and privacy is a fundamental right and that high standards⁵ in this regard contribute to economic and social benefits, trust in the digital economy and to the development of trade.
2. Each Party may adopt and maintain the legal framework it deems appropriate to ensure the protection of personal data and privacy, including through the adoption and application of rules for the cross-border transfer of personal data. Nothing in this agreement shall affect the protection of personal data and privacy afforded by the Parties' respective legal framework or otherwise require the Parties to adopt or maintain a specific framework for the protection of personal data and privacy protection.
3. Each Party shall inform the other Party about any legal framework it adopts or maintains according to paragraph 2.

Section C

Specific provisions

Article 10.7

⁴ Recalling Article 10.2 (Right to regulate), the Parties reaffirm their respective right to regulate consistently with this Agreement to achieve legitimate policy objectives, including ensuring security and stability of telecommunication infrastructure.

⁵ For greater certainty, the Parties share the understanding that high standards of protection can be ensured through different instruments and safeguards.

Customs Duties on Electronic Transmissions

1. Neither Party shall impose customs duties on electronic transmissions.⁶
2. For greater certainty, the Parties agree that consistent with the principles of GATS, trade in services is not subject to customs duties.
3. The practice referred to in paragraph 1 is in accordance with the WTO Ministerial Decision (WT/MIN (24)/38), adopted on 2 March 2024, in relation to the Work Programme on Electronic Commerce
4. Each Party may adjust their practice referred to in paragraph 1 in light of any further WTO Ministerial Decisions or Agreement in relation to the Work Programme on Electronic Commerce. Such adjustment shall be without prejudice to the Parties' commitments in Article 10.5 (Reduction or Elimination of Customs Duties) of Chapter 2 (National Treatment and Market Access for Goods).
5. For greater certainty, paragraphs 1 to 4 shall not preclude any Party from applying customs procedures for public policy purposes, or from imposing internal taxes, fees, or other charges on electronic transmission, provided that such taxes, fees, or charges are imposed in a manner consistent with the WTO Agreement.

Article 10.8

No prior authorisation

1. A Party shall not require prior authorisation solely on the ground that a service is provided by electronic means or adopt or maintain any other requirement having equivalent effect.
2. For greater certainty, a Party is not precluded from requiring prior authorisation for an online service, or from adopting or maintaining any other requirement having an equivalent effect, based on other policy grounds, such as consumer protection.

Paragraph 1 does not apply:

- (a) to telecommunications services, broadcasting services, gambling services and legal representation services; or
- (b) services of notaries or equivalent professions or other relevant services, to the extent that they involve a direct and specific connection with the exercise of public authority.

Article 10.9

Conclusion of Contracts by Electronic Means

⁶ Paragraph 1 is without prejudice to Parties' position on whether electronic transmissions should be categorised as trade in services or goods.

Except as otherwise provided for under the Parties laws and regulations, The Parties shall ensure that their legal systems allow contracts to be concluded by electronic means and that the legal requirements for contractual processes neither create obstacles for the use of electronic contracts nor result in such contracts being deprived of legal effect and validity for having been made by electronic means.⁷

Article 10.10

Electronic Trust and Authentication Services

1. Except in circumstances otherwise provided for under its laws and regulations, a Party shall not deny the legal effect and admissibility as evidence in legal proceedings of an electronic trust and electronic authentication service solely on the basis that the service is in electronic form.
2. Neither Party shall adopt or maintain measures regulating electronic trust and electronic authentication services that would:
 - (a) prohibit parties to an electronic transaction from mutually determining the appropriate electronic methods for their transaction; or
 - (b) prevent parties to an electronic transaction from having the opportunity to prove to judicial and administrative authorities that their electronic transaction complies with any legal requirements with respect to electronic trust and electronic authentication services.
3. Notwithstanding paragraph 2, each Party may require that, for a particular category of electronic transactions, the method of electronic authentication meets certain performance standards that shall be objective, transparent and non-discriminatory or is certified by an authority accredited in accordance with its laws and regulations.

Article 10.11

Online Consumer Trust

1. The Parties recognise the importance of maintaining and adopting transparent and effective measures that contribute to consumer trust, including but not limited to measures that protect consumers from fraudulent and deceptive commercial practices when they engage in electronic commerce.

⁷ For greater certainty, certain requirements for the legal effect and validity of contracts as provided in the Parties laws and regulations shall not be considered as obstacles for the use of electronic contracts.

2. To this end, each Party shall adopt or maintain measures that contribute to consumer trust, including measures that proscribe fraudulent and deceptive commercial practices.
3. The Parties recognise the importance of cooperation between their respective national consumer protection agencies or other relevant bodies on activities related to electronic commerce in order to protect consumers and enhance consumer trust.

Article 10.12

Unsolicited Direct Marketing Communications

1. Each Party shall ensure that end-users are effectively protected against unsolicited direct marketing communications. To this end, in particular each Party shall ensure that natural and legal persons do not send direct marketing communications to consumers who have not given their prior consent⁸.
3. Notwithstanding paragraph 2, each Party shall allow natural and legal persons which have collected, in accordance with their Party's own laws and regulations, a consumer's contact details in the context of the sale of a product or a service, to send direct marketing communications to that consumer for their own similar products or services.
4. Each Party shall ensure that direct marketing communications are clearly identifiable as such, clearly disclose on whose behalf they are made and contain the necessary information to enable end-users to request cessation free of charge and at any moment.]

Article 10.13

Transfer of or Access to Source Code

1. A Party shall not require the transfer of, or access to, source code of software owned by a juridical or natural person of the other Party as a condition for the import, export, distribution, sale or use of such software, or of products containing such software, in its territory.
2. For greater certainty:
 - (a) article 23.1 (General exceptions)] of Chapter 23 (Exceptions)], Article 23.2 (Security exceptions)] of Chapter 23 (Exceptions)] and Article 8.49 (Prudential carve-out)] of Chapter 8 (Investment Liberalisation and Trade in Services)] may apply to measures of a Party adopted or maintained, for instance, in the context of a certification procedure;
 - (b) paragraph 1 does not apply to the voluntary transfer of or granting of access to source code on a commercial basis by a person of the other Party, for instance in the context of a public procurement transaction or a freely negotiated contract.

⁸ Prior consent shall be defined in accordance with each Party's own laws and regulations.

- (c) paragraph 1 does not affect the right of regulatory, law enforcement or judicial bodies of a Party to require the modification of source code software to comply with its laws and regulations that are not inconsistent with this Agreement.
3. Nothing in this Article shall affect:
- (a) the right of regulatory authorities, law enforcement, judicial or conformity assessment bodies⁹ of a Party to require the transfer of, or access to, source code of software, either prior to or following import, export, distribution, sale or use of such software, for investigation, inspection or examination, enforcement action or judicial proceeding purposes, to secure compliance with its laws or regulations pursuing legitimate public policy objectives¹⁰, subject to safeguards against unauthorised disclosure;
 - (b) requirements by a court, administrative tribunal, competition authority or other relevant body of a Party to remedy a violation of competition laws; or requirements pursuant to a Party's laws or regulations that are not inconsistent with the Agreement to provide proportionate and targeted access to the source code of software that is necessary to address barriers to entry in digital markets to ensure these markets remain competitive, fair, open and transparent.
 - (c) the protection and enforcement of intellectual property rights or
 - (d) a public procurement transaction

Article 10.14

Cybersecurity

1. The Parties recognise that threats to cybersecurity undermine confidence in electronic commerce.

⁹ For the purpose of this Article, 'conformity assessment body' refers to a relevant governmental body or authority of a Party, or non-governmental body in the exercise of powers delegated by a governmental body or authority of the Party, carrying out an assessment of conformity in accordance with the applicable laws or regulations of that Party.

¹⁰ For the purpose of this Article, "legitimate public policy objective" shall be interpreted in an objective manner and shall enable the pursuit of objectives such as to protect public security, public morals, or human, animal or plant life or health, to maintain public order, to protect other fundamental interests of society such as cybersecurity, safe and trustworthy artificial intelligence, or protecting against the dissemination of disinformation, or other similar objectives of public interest, taking into account the evolving nature of digital technologies and related challenges.

2. In order to identify and mitigate those threats and thereby facilitate electronic commerce, Parties recognise the importance of:
 - (a) building the capabilities of their respective national entities responsible for cybersecurity incident response; and
 - (b) using collaboration mechanisms, as appropriate, to cooperate, anticipate, identify and mitigate malicious intrusions or dissemination of malicious code that affect electronic networks of the Parties and use those mechanisms to swiftly address cybersecurity incidents, as well as for the sharing of information for awareness and best practices.
3. Given the evolving nature of cybersecurity threats and their negative impact on electronic commerce, the Parties recognise that risk-based approaches are generally effective in addressing those threats and minimising trade barriers. Accordingly, each Party shall endeavour to employ, and shall encourage enterprises within its jurisdiction to use, risk-based approaches that rely on open and transparent standards and risk management best practices to identify and protect against cybersecurity risks and to detect, respond to, and recover from cybersecurity incidents.

Article 10.15

Regulatory Cooperation

1. The Parties shall maintain a dialogue on regulatory issues raised by digital trade, which shall inter alia address the following issues:
 - (a) the recognition and facilitation of interoperable cross-border electronic trust and authentication services;
 - (b) the treatment of direct marketing communications;
 - (c) the protection of consumers in the ambit of electronic commerce including building consumer confidence;
 - (d) the challenges for micro, small and medium-sized enterprises in digital trade; and
 - (e) any other issue relevant for the development of digital trade.
2. Such dialogue shall focus on exchange of information on the Parties' respective laws and regulations on the issues referred to in paragraph 1 as well as on the implementation of such laws and regulations.
3. Recognising the global nature of electronic commerce, the Party shall endeavour to cooperate to:
 - (a) work together to assist micro, small and medium-sized enterprises to overcome obstacles to its use;

- (b) exchange information and share views on consumer access to products and services offered online; and
 - (c) encourage business sectors to develop methods or practices that enhance consumer confidence to foster the use of electronic commerce.
4. The parties shall, where appropriate, cooperate and participate actively in international fora to promote the development of digital trade.